

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

February 19, 2025

By: Murdock and Bullard

An Act relating to firearms; defining terms; prohibiting governmental entities from contracting with companies unless contracts contain certain written verification; providing an exception for specific contracts; specifying the type of entities that must comply with certain contract requirements; requiring the Office of Management and Enterprise Services to provide oversight and advice to governmental entities; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1289.31 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Ammunition" means a loaded cartridge or shot shell, case, primer, projectile, wadding, or propellant powder;

2. "Company" means a for-profit organization, association, corporation, partnership, joint venture, limited partnership, limited liability partnership, or limited liability company, including a wholly owned subsidiary, majority-owned subsidiary, parent company, or an affiliate of those entities or associations

1 that exists to make a profit. The term does not include a sole
2 proprietorship;

3 3. "Discriminate against a firearm entity or firearm trade
4 association" means, with respect to the entity or association, to:

- 5 a. refuse to engage in the trade of any goods or services
6 with the entity or association based solely on its
7 status as a firearm entity or firearm trade
8 association which includes the lawful products and
9 services provided by and lawful practices of firearm
10 entities and firearm trade associations,
- 11 b. refrain from continuing an existing business
12 relationship with the entity or association based
13 solely on its status as a firearm entity or firearm
14 trade association which includes the lawful products
15 and services provided by and lawful practices of
16 firearm entities and firearm trade associations, or
- 17 c. terminate an existing business relationship with the
18 entity or association based solely on its status as a
19 firearm entity or firearm trade association which
20 includes the lawful products and services provided by
21 and lawful practices of firearm entities and firearm
22 trade associations.

23 The term does not include the policies of a vendor, merchant, retail
24 seller, or platform that restrict or prohibit the listing or selling

1 of ammunition, firearms, or firearm accessories. The term also does
2 not include a company's refusal to engage in the trade of any goods
3 or services, decision to refrain from continuing an existing
4 business relationship, or decision to terminate an existing business
5 relationship to comply with federal, state, or local laws, policies,
6 or regulations or a directive by a regulatory agency, or for any
7 traditional business reason that is specific to the customer or
8 potential customer and not based solely on the status of an entity
9 or association as a firearm entity or firearm trade association
10 which includes the lawful products and services provided by and
11 lawful practices of firearm entities and firearm trade associations;

12 4. "Firearm" means a weapon that expels a projectile by the
13 action of explosive or expanding gases;

14 5. "Firearm accessory" means a device specifically designed or
15 adapted to enable an individual to wear, carry, store, or mount a
16 firearm on the individual or on a conveyance and an item used in
17 conjunction with or mounted on a firearm that is not essential to
18 the basic function of the firearm. The term includes a detachable
19 firearm magazine;

20 6. "Firearm entity" means:

21 a. a firearm, firearm accessory, or ammunition
22 manufacturer, distributor, wholesaler, supplier, or
23 retailer, and

24 b. a gun range;

1 7. "Firearm trade association" means any person, corporation,
2 unincorporated association, federation, business league, or business
3 organization that:

4 a. is not organized or operated for profit and for which
5 none of its net earning inures to the benefit of any
6 private shareholder or individual,

7 b. has two or more firearm entities as members, and

8 c. is exempt from federal income taxation under Section
9 501(a), Internal Revenue Code of 1986, as amended, as
10 an organization described by Section 501(c) of that
11 code;

12 8. "Governmental entity" means any branch, department, agency,
13 or instrumentality of state government, or any official or other
14 person acting under color of state law, or any political subdivision
15 of this state;

16 9. "Sole-source provider" means a supplier who provides goods
17 or services of a unique nature or goods or services that are solely
18 available through the supplier and the supplier is the only
19 practicable source to provide such goods or services; and

20 10. "Contract" means a promise or set of promises constituting
21 an agreement between the parties that gives each a legal duty to the
22 other and the right to seek a remedy for the breach of those duties
23 but does not include an agreement related to investment services.
24

1 B. A governmental entity may not enter into a contract with a
2 company for the purchase of goods or services unless the contract
3 contains a written verification from the company that it:

4 1. Does not have a practice, policy, guidance, or directive
5 that discriminates against a firearm entity or firearm trade
6 association; and

7 2. Will not discriminate against a firearm entity or firearm
8 trade association during the term of the contract.

9 C. The provisions of subsection B of this section shall not
10 apply to a governmental entity that:

11 1. Contracts with a sole-source provider; or

12 2. Does not receive a bid from a company that is able to
13 provide the written verification required by subsection B of this
14 section.

15 D. The provisions of this section shall apply only to a
16 contract that:

17 1. Is between a governmental entity and a company with at least
18 ten full-time employees; and

19 2. Has a value of at least One Hundred Thousand Dollars
20 (\$100,000.00) that is paid wholly or partly from public funds of the
21 governmental entity.

22 E. The Purchasing Division of the Office of Management and
23 Enterprise Services shall have the authority and responsibility of
24

1 reviewing state governmental contracts to confirm that the
2 requirements of subsection B of this section have been satisfied.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
5 February 19, 2025 - DO PASS
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24